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By 1250 at 5:20 pm, Jul 17, 2026

FILED

JUL 17 2026

TIMOTHY W. FITZGERALD
SPOKANE COUNTY CLERK

Superior Court of Washington, County of Spokane

Robert mark 5/22/85
Petitioner, Date of Birth

No. 26203618 32

vs.

Richard Kenneth Mark 1/22/88
Respondent, Date of Birth

Temporary Protection Order and Hearing Notice (TMO-) (Select only one)

☐ Domestic Violence (RPRT)

☐ Sexual Assault (RSXP)

☒ Harassment (RAH)

☐ Stalking (STKH)

☐ Vulnerable Adult (RVA)

Clerk's Action Required: 5.B, 10, 11, 12

Next Hearing Date and Time: 8:30 AM

7/27/26

See How to Attend at the end of this order

Temporary Protection Order and Hearing Notice

1. This order is effective until the end of the hearing listed above.

This protection order complies with the Violence Against Women Act and shall be enforced throughout the United States. See last page.

2. This order restrains (name): Richard Kenneth Mark
also known as (list any known aliases) Richard Kenneth Penwell, Rick Mark

The restrained person must obey the restraints ordered in section 8.

Gender <u>male</u>	Race <u>white</u>	Height <u>5'9"</u>	Weight <u>180</u>
Eye Color <u>Blue</u>	Hair Color <u>Blonde</u>	Skin Tone <u>Light</u>	Build <u>medium</u>

Noticeable features (Ex.: tattoos, scars, birthmarks):

Has ☐ access to or ☐ possession of ☐ firearms ☐ other weapons ☒ unknown

Surrender weapons ordered: ☒ Yes ☐ No

3. This order protects (name): Robert mark
and the following children who are under 18 (if any) ☐ no minors

Child's name	Age	Child's name	Age
1.		2.	
3.		4.	
5.		6.	

There is a rebuttable presumption to include the protected person's minor children.

☐ For good cause, the court is **not** including the protected person's minor children in this order because: _____

Warnings to the Restrained Person



You can be arrested even if the protected person or persons invite or allow you to violate the order. You alone are responsible for following the order. **Only the court may change the order.** Requests for changes must be made in writing.

If you do not obey this order, you can be arrested and charged with a crime.

- The crime may be a misdemeanor, gross misdemeanor, or felony depending on the circumstances. You may also be found in contempt of court.
- You can go to jail or prison, lose your right to possess a firearm or ammunition, and/or pay a fine.
- It is a felony to take or hide a child in violation of this order.
- If you travel to another state or to tribal lands or make the protected person do so with the intention of disobeying this order, you can be charged with a federal crime.



Firearms and Weapons. If the court approves a full protection order, you may not be able to get or have a gun, firearm, other dangerous weapon, ammunition, or concealed pistol license for as long as the protection order is in place.



Go to the court hearing scheduled on page 1. If you do not, the court may:

- Make this temporary order effective for 1 year or longer
- Order weapons restrictions, even if that was not requested
- Order other relief requested in the petition
- Order electronic monitoring, payment of costs, and treatment
- Issue a final order that you are required to follow and you may not be served with the order if it is substantially the same as this temporary order

If you are under age 18, your parent/s or legal guardian/s will also be served with this order and should also go to the hearing. The court will decide if someone should be appointed to represent you.

Findings

4. Ex Parte Hearing

- ☒ The court issues this temporary order without a hearing.
- ☐ The court held a hearing before issuing this temporary order. These people attended:
- | | | | |
|--|------------------------------------|-----------------------------------|-----------------------------------|
| ☐ Protected Person | ☐ in person | ☐ by phone | ☐ by video |
| ☐ Restrained Person | ☐ in person | ☐ by phone | ☐ by video |
| ☐ Other: _____ | ☐ in person | ☐ by phone | ☐ by video |

5. Basis

A. The court finds: Based upon the petition, testimony, and case record, it appears that the restrained person engaged in conduct against the protected person/s that would be a basis for a protection order under chapter 7.105 RCW. This *Temporary Protection Order* should be issued without notice to the restrained person to avoid serious immediate harm or irreparable injury.

B. Antiharassment Temporary Protection Order

- ☒ No fee required (stalking, hate crime, single act of violence, or threat of violence including malicious and intentional threat, or presence of firearm/weapon causing substantial emotional distress, family or household member engaged in domestic violence, or nonconsensual sexual conduct or penetration or a sex offense. RCW 7.105.105(9)).

6. Jurisdiction

The court has jurisdiction over the parties and the subject matter.

- ☐ **Minors:** Washington state ☐ has exclusive continuing jurisdiction ☐ is the home state ☐ has temporary emergency jurisdiction over the children.

- ☐ **Temporary Emergency Jurisdiction:** The petitioner has until (date) _____ to return to (state/court with jurisdiction over the minors) _____ to seek any court orders about these minors:

The Washington order will terminate on that date for the minors. RCW 26.27.231.

- ☐ **The person who filed is not a parent** of one or more children listed above.
(**Important!** Complete *Protection Order Attachment A: Non-Parent (ICWA)*, PO 030A/PO 040A.)

7. Other Findings (if any)

Temporary Restraints (*Check all that apply*):

8. The Court Orders: To the restrained person:

General Restraints

- A. ☒ **No Harm:** Do not cause any physical harm, bodily injury, assault, nonconsensual sexual conduct or nonconsensual sexual penetration, and do not harass, threaten, or stalk:

☒ the protected person [] the minors named in section 3 above

[] these minors only: _____

- B. ☒ **No Contact:** Do not attempt or have any contact, including nonphysical contact, directly, indirectly, or through third parties, regardless of whether those third parties know of the order, except for service of court documents with:

☒ the protected person [] the minors named in section 3 above

[] these minors only: _____

[] these members of the protected person's household: _____

[] **Exception** (if any): Only this type of contact is allowed: _____

Exceptions about minors only, if any, provided in **P** below.

- C. ☒ **Stalking Behavior:** Do not harass, follow, monitor, keep under physical or electronic surveillance, cyber harass (as defined in RCW 9A.90.120), or use phone, video, audio or other electronic means to record, photograph, or track locations or communication, including digital, wire, or electronic communication, of:

☒ the protected person [] the minors named in section 3 above

[] these minors only: _____

[] these members of the protected person's household: _____

- D. ☒ **Exclude and Stay Away:** Do not enter, return to, knowingly come within, or knowingly remain within 1,000 feet or other distance (*specify*) _____ of:

☒ the protected person

☒ protected person's vehicle

[] protected person's school

☒ protected person's workplace

☒ protected person's residence

[] protected person's adult day program

[] the shared residence

[] the residence, daycare, or school of [] the minors named in section 3 above

[] these minors only: _____

[] other: _____

Address: The protected person chooses to (*check one*):

☒ keep their address confidential

[] list their address here: _____

- E. ☐ **Vacate Shared Residence:** The protected person has exclusive right to the residence that the protected person and restrained person share. The restrained person must immediately vacate the residence.
- F. ☐ **Intimate Images:** Do not possess or distribute intimate images of a protected person, as defined in RCW 9A.86.010. The restrained person must take down and delete all intimate images and recordings of a protected person in the restrained person's possession or control and cease any and all disclosure of those intimate images.
- G. ☐ **Electronic Monitoring:** You must submit to electronic monitoring. (*Restrained person must be age 18 or older.*)

Monitoring by (specify): _____

Term (if different from expiration of temporary order): _____

☐ Restrained Person must pay cost of electronic monitoring.

- H. ☐ **Evaluation:** ☐ To be decided at the full hearing. ☐ Ordered now.

The restrained person shall get an evaluation for: ☐ mental health ☐ chemical dependency (drugs or alcohol) at: _____

The evaluation shall answer the following question/s:

An evaluation is necessary and it is feasible and appropriate to order an evaluation in this temporary order because:

- I. ☐ **Treatment:** ☐ To be decided at the hearing. ☐ Ordered now.

The restrained person shall participate in state-certified treatment as follows:

☐ domestic violence perpetrator treatment program approved under RCW 43.20A.735 at: _____

☐ sex offender treatment program approved under RCW 18.155.070 at: _____

It is feasible and appropriate to order treatment in this temporary order because:

- J. ☐ **Personal Belongings:** The protected person shall have possession of essential personal belongings, including the following:

- K. ☐ **Transfer of Assets:** Do not transfer jointly owned assets.

☐ **Finances:** The following financial relief is ordered: _____

L. ☐ **Vehicle:** The protected person shall have use of the following vehicle:

Year, Make & Model _____ License No. _____

M. **Restrict Abusive Litigation:** To be decided at the hearing, if requested.

N. **Pay Fees and Costs:** To be decided at the hearing, if requested.

Firearms and Other Dangerous Weapons

O. ☒ **Surrender Weapons:** **Important!** Also use form *Order to Surrender and Prohibit Weapons*, WS 001.

The court finds that (*check all that apply*):

☐ Irreparable injury could result if the *Order to Surrender and Prohibit Weapons* is not issued.

☐ The restrained person's possession of a firearm or other dangerous weapon presents a serious and imminent threat to public health or safety or the health or safety of any individual.

☐ Irreparable injury could result if the restrained person is allowed to access, obtain, or possess any firearms or other dangerous weapons, or obtains or possesses a concealed pistol license.

The restrained person must:

- Immediately surrender to law enforcement and not access, possess, have in their custody or control, purchase, receive, or attempt to purchase or receive firearms, other dangerous weapons, or concealed pistol licenses; and
- Comply with the ***Order to Surrender and Prohibit Weapons***, filed separately.

Minors

P. ☐ **Custody:** The protected person is granted temporary care, custody, and control of:

☐ the minors named in section 3 above.

☐ these minors only: _____

Exceptions for Visitation and Transportation, if any (including exchanges, meeting location, pickup and dropoff): _____

Visitation listed here is an exception only to No Contact and Stay Away provisions about the children in B and D above.

(*Only for children the protected and restrained person have together.*)

To comply with the Child Relocation Act, anyone with majority or substantially equal residential time (at least 45 percent) who wants to move with the child must notify every other person who has court-ordered time with the child. Specific exemptions from notification may be available if the court finds unreasonable risk to health or safety. Persons entitled to time with the child under a court order may object to the proposed relocation. See RCW 26.09.405 - .560 for more information.

Q. ☐ **Interference:** Do not interfere with the protected person's physical or legal custody of:

☐ the minors named in section 3 above

☐ these minors only: _____

R. ☐ **Removal from State:** Do not remove from the state:

☐ the minors named in section 3 above

☐ these minors only: _____

S. ☐ **School Enrollment:** Do not enroll or continue attending the elementary, middle, or high school that a protected person attends (*name of school*) _____.
(Only if both the restrained person and a protected person are students at the same school. Can apply to students 18 or older. Includes public and private schools. Complete form Appendix A School Attendance.)

Pets

T. ☐ **Custody:** The protected person shall have exclusive custody and control of the following pet/s owned, possessed, leased, kept, or held by the protected person, restrained person, or a minor child who lives with either the protected or restrained person. (*Specify name of pet and type of animal.*): _____

U. ☐ **Interference:** Do not interfere with the protected person's efforts to get the pet/s named above.

V. ☐ **Stay Away:** Do not knowingly come within, or knowingly remain within (*distance*) _____ of the following locations where the pet/s are regularly found:

☐ Protected person's residence (*home address may be kept confidential*)

☐ Other (*specify*) _____

Vulnerable Adult

W. ☐ **Safety:** Do not commit or threaten to commit acts of abandonment, neglect, financial exploitation, or abuse, including sexual abuse, mental abuse, physical abuse, personal exploitation, and improper use of restraints against the vulnerable adult.

X. ☐ **Accounting:** You must provide an accounting of the disposition of the vulnerable adult's income or other resources by (*date*) _____

Y. ☐ **Property Transfer:** Do not transfer the property of ☐ the vulnerable adult ☐ the restrained person. This restraint is valid for up to 90 days.

Other

Z. _____

Other Orders (Check all that apply):

9. ☐ Law enforcement must help the protected person with (RCW 7.105.320(1))

- ☐ Possession of the protected person's residence.
- ☐ Possession of the vehicle listed in section L above.
- ☐ Possession of the protected person's essential personal belongings located at:
 - ☐ the shared residence
 - ☐ the restrained person's residence
 - ☐ other location _____
- ☐ Custody of ☐ the minors named in section 3 above
 - ☐ these minors only _____
- ☐ Other: _____

- ☐ **Law enforcement must be present while the restrained person collects** personal clothing, personal items needed during the duration of this order, and these other items (specify) _____
from the shared residence that restrained person has been ordered to vacate in D or E above (RCW 7.105.320(3)).

10. Washington Crime Information Center (WACIC) and Other Data Entry

Clerk's Action. The court clerk shall forward a copy of this order immediately to the following law enforcement agency (county or city) Spokane County
(check only one): ☒ Sheriff's Office or ☐ Police Department

This agency shall enter this order into WACIC and National Crime Info. Center (NCIC).

11. Service on the Restrained Person

- ☒ **Required.** The restrained person must be served with a service packet, including a copy of this order, the petition, and any supporting materials filed with the petition.

- ☒ The **law enforcement agency** where the restrained person lives or can be served shall serve the restrained person with the service packet and shall promptly complete and return proof of service to this court.

Law enforcement agency: (county or city) Spokane County
(check only one): ☒ Sheriff's Office or ☐ Police Department

- ☐ The **protected person** (or person filing on their behalf) shall make private arrangements for service and have proof of service returned to this court. (This is not an option if this order requires: weapon surrender, vacating a shared residence, transfer of child custody, or if the restrained person is incarcerated. In these circumstances, law enforcement must serve unless the court allows alternative service.)

Clerk's Action. The court clerk shall forward a service packet on or before the next judicial day to the agency and/or party checked above. The court clerk shall also provide a copy of the service packet to the protected person.

☐ **Alternative Service Allowed.** The court authorizes alternative service by separate order (*specify*): _____

☐ **Not required.** The restrained person appeared at the hearing, in person or remotely, and received notice of the order. No further service is required. See section 4 above for appearances. (*May apply even if the restrained person left before a final ruling is issued or signed.*)

12. ☐ Service on Others (Vulnerable Adult or Restrained Person under age 18)

Service on the ☐ vulnerable adult ☐ adult's guardian/conservator ☐ Restrained Person's parent/s or legal guardian/s (*name/s*) _____ is:

☐ **Required.**

☐ The **law enforcement agency** where the person to be served lives or can be served shall serve a copy of this order and shall promptly complete and return proof of service to this court.

Law enforcement agency: (*county or city*) _____

(*check only one*): ☐ Sheriff's Office or ☐ Police Department

☐ The **protected person** or person filing on their behalf shall make private arrangements for service and have proof of service returned to this court.

Clerk's Action. The court clerk shall forward a copy of this order on or before the next judicial day to the agency and/or party checked above.

☐ **Not required.** They appeared at the hearing where this order was issued and received a copy.

13. Other Orders (if any):

How to attend the next court hearing (date and time on page 1).

The hearing scheduled on page 1 will be held:

7.27.26

	In person Judge/Commissioner: TBD Courtroom: 202 Address: WEST 1116 BROADWAY, SPOKANE, WA. 99260
	Online (audio and video) App: ZOOM.US [X] Log-in: 402 876 2240
	By Phone (audio only) [X] You must get permission from the court at least 3 court days before your hearing to participate by phone only (without video). To make this request, contact: EX PARTE COURTROOM 202 (509) 477-4421.

	If you have trouble connecting online or by phone (instructions, who to contact) FAMILY LAW DEPARTMENT (509) 477-5702 EXT: 0 _____ _____	
	Ask for an interpreter, if needed. Contact: (509)477-5790 _____ _____	 Ask for disability accommodation, if needed. Contact: (509)477-5790 _____ _____
Ask for an interpreter or accommodation as soon as you can. Do not wait until the hearing!		

Ordered.

Dated: 7/17/20 at 3:59 a.m./p.m. 

JOANNA PURYEAR

Judge/Court Commissioner

Print Judge/Court Commissioner Name

I received a copy of this Order or attended the hearing remotely and have actual notice of this order. It was explained to me on the record:

▶ _____
Signature of Respondent

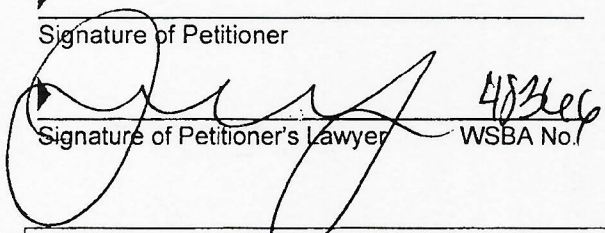
Print Name Date

▶ _____
Signature of Respondent's Lawyer WSBA No.

Print Name Date

▶ _____
Signature of Petitioner

Print Name Date

▶  _____
Signature of Petitioner's Lawyer WSBA No. 483466

Print Name Date

Important! Protected Person: Law enforcement must notify you before firearms are returned to the Restrained Person. Keep your contact information up to date with the law enforcement agency. The *Proof of Surrender* in the court file should say which agency has the firearms. RCW 9.41.340.

Certificate of Compliance With VAWA. This protection order meets all "full faith and credit" requirements of the Violence Against Women Act, 18 U.S.C. § 2265 (1994) (VAWA) upon notice to the restrained person. This court has jurisdiction over the parties and the subject matter; the restrained person has been or will be given notice and a timely opportunity to be heard as provided by the laws of this jurisdiction. This order is enforceable in all 50 states, Indian tribal lands, the District of Columbia, the Commonwealth of Puerto Rico, the U.S. Virgin Islands, American Samoa, the Northern Mariana Islands, and Guam, as if it were an order of that jurisdiction.

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Superior Court of Washington, County of Spokane

Robert Mark 5/22/85
Petitioner

vs.

Richard Kennen Mark 1/22/88
Respondent DOB

No.: **26203618 32**

**Order to Surrender
and Prohibit Weapons**

- ☒ Issued Without Notice (ORWPN)
☐ Temporary/Pre-Trial (ORWPNP)
☐ Final/Post Conviction (ORWPNP)
☐ Compliance Review Hearing (ORCRH)

**FOR COMPLIANCE HEARING SEE
ATTACHED ADDENDUM ON HOW TO
ATTEND YOUR HEARING.**

Next Hearing Date/Time: 7/27/26
At: 3:30 PM Courtroom 205

ZOOM ID NO 204 222 7486

(Clerk's Action Required)

Order to Surrender and Prohibit Weapons

1. Restrained Person

This order restrains the defendant/restrained person (name Richard Kennen Mark
(Restrained Person), based on the findings in the order issued on (date) 7/17/26.

This order replaces all prior *Orders to Surrender and Prohibit Weapons* issued under this case number.

2. Surrender of Weapons

Restrained Person: You must **immediately surrender** all firearms and other dangerous weapons in your possession, custody, or control, to this local law enforcement agency:

☒ Spokane County Sheriff

☐ Spokane Police Department

☐ City of Cheney Police Depart.

☐ City of Airway Heights Police Dept.

☐ City of Liberty Lake Police Dept.

☐ _____ County Sheriff/Police Dept.

You must immediately surrender all firearms and other dangerous weapons subject to this order, including but not limited to the following:

See the attached sheet if there are more to list.

Other: _____

3. Surrender of Concealed Pistol License

Restrained Person: You must **immediately surrender** any concealed pistol licenses issued under RCW 9.41.070 to this local law enforcement agency:

4. Weapons Prohibition

Restrained Person: You are prohibited from accessing, having in your custody or control, obtaining, possessing, purchasing, receiving or attempting to purchase or receive any firearms or other dangerous weapons, or obtaining or possessing a concealed pistol license.

5. This Order expires:

☒ at the same time as the protection order entered under this case number.

☐ on _____ or until further order of the court.

6. Instructions to Restrained Person

If you have firearms, other dangerous weapons, or concealed pistol licenses:

Step 1: **Immediately** surrender all firearms, other dangerous weapons, and concealed pistol licenses.

Important! If you have notice of this order, **immediately** surrender all firearms, other dangerous weapons, and concealed pistol licenses to the local law enforcement agency listed in section 2 on the same day as the hearing. Contact the local law enforcement agency for directions on how to immediately surrender the firearms, dangerous weapons, and concealed pistol licenses.

If a law enforcement officer serves you, surrender firearms and other dangerous weapons, and your concealed pistol license to the law enforcement officer.

Step 2: **Get a receipt** for the surrender of firearms, other dangerous weapons, and concealed pistol licenses from law enforcement.

Step 3: **Complete** the *Proof of Surrender* form and file it with the receipt, or file other evidence to prove full and timely compliance.

Step 4: **File** your documentation from Step 3 with the court clerk by the deadline for this type of case:

- Civil: within 24 hours.
- Criminal (defendant in custody): before you are released from custody.
- Criminal (defendant not in custody): by the end of your sentencing hearing.

If you do NOT have firearms, other dangerous weapons, or concealed pistol licenses:

Step 1: **Immediately** complete and sign the *Declaration: No Weapons to Surrender* form or gather other evidence that proves full and timely compliance.

Step 2: **File** your documentation from Step 1 with the court clerk by the deadline for this type of case:

- Civil: within 24 hours.
- Criminal (defendant in custody): before you are released from custody.
- Criminal (defendant not in custody): by the end of your sentencing hearing.

If you already surrendered all firearms, other dangerous weapons, and concealed pistol licenses under another order, they must remain in the possession of the law enforcement agency that received them until further order of the court. You must provide proof of previous surrender to the court in this case.

The Law Enforcement Officer serving this order shall inform you that the order is in effect upon service and that you must immediately surrender all firearms, other dangerous weapons, and any concealed pistol licenses issued under RCW 9.41.070. The serving officer shall conduct a search for firearms, other dangerous weapons, and concealed pistol licenses as permitted by law. The serving officer shall take possession of:

- **All firearms,**
- **Other dangerous weapons,**
- **Concealed pistol licenses belonging to Restrained Person,**

that are surrendered, in plain sight, or discovered during a lawful search. RCW 9.41.801.

7. [] Criminal Case: Law Enforcement To Accompany Defendant for Surrender.

The court finds that surrender of all firearms, dangerous weapons, and any concealed pistol license was not possible before release from custody or conclusion of the sentencing hearing.

The court orders (law enforcement agency) _____ to
accompany defendant to (location) _____
_____. Law
enforcement must file the Receipt within 24 hours.

8. **Washington Crime Information Center (WACIC) and Other Data Entry**

Clerk's Action. The court clerk shall forward a copy of this order immediately to the following law enforcement agency (*county or city*) SPOKANE

☒ Sheriff's Office or ☐ Police Department

(List the same agency that entered the temporary order, if any)

This agency shall enter this order into WACIC, NCIC, and NICS.

9. **Service**

☒ **Required.** The law enforcement agency where the defendant/restrained person lives or can be served shall prioritize serving the restrained person with a copy of this order and shall promptly complete and return proof of service to this court.

Law enforcement agency: (*county or city*) SPOKANE ☒ Sheriff's Office or ☐ Police Department

Clerk's Action. The court clerk shall forward a copy of this order on or before the next judicial day to the agency and/or party checked above.

☐ **Not Required.** The restrained person appeared at the hearing, in person or remotely, and received notice of the order. No further service is required. (May apply even if the restrained person left before a final ruling is issued or signed.)

10. **Compliance Hearing**

To decide if a compliance hearing is needed, the court considered:

☐ restrained person's attestation

☐ law enforcement verification

☐ police report and documentation of firearms or their recovery

☐ Department of Licensing firearm records

☐ Washington State Patrol firearm records

☐ protection order narrative, sections about firearms and dangerous weapons, and attachments

☐ affidavits by law enforcement, protected person, or petitioner in response to restrained person's declaration about firearms surrender

☐ other: _____

11. **The court orders (check one):**

☒ **Respondent: You must attend the hearing listed on page 1 of this order** and show the court that you surrendered your firearm/s and concealed pistol license/s.

☐ **Respondent's compliance found: No hearing required.** The court finds a sufficient showing that respondent has timely and completely surrendered all firearms and dangerous weapons in the respondent's custody, control, or possession and any concealed pistol license to a law enforcement agency and is in compliance with this order. The compliance hearing is waived per RCW 9.41.801(6).

12. Warnings!

- If you fail to comply with this order, you may be found in contempt of court and/or be charged with a misdemeanor and punished accordingly.
- You may also be charged with a crime up to and including a **felony** if you are found to own, possess, or control a firearm or other dangerous weapon.
- You have the right to remain silent and not make statements that may incriminate you. Anything you say can be used against you in a court of law. You have the right to consult with a lawyer before responding to this Order.
- This order may be extended pursuant to RCW 10.99.040(3).

13. Protection against self-incrimination

Voluntarily surrendering weapons may not be used against a Restrained Person in any criminal prosecution under chapter 7.105, 9.41, or 9A.56.310 RCW, or in any criminal prosecution pursuant to which this *Order to Surrender and Prohibit Weapons* was issued, except a prosecution for perjury, giving false statement, or otherwise failing to comply with the order.

Ordered.

Dated 7/17/20 at (time) 3:40 a.m./p.m. Joanna Pinski
Superior Court Commissioner

I received a copy of this order.

Signature of Restrained Person/Defendant

Print Name

Signature of Restrained Person/Defendant's Attorney WSBA No.

Print Name

40366
Signature of Protected Person or Attorney WSBA No.

Jennifer Croft
Print Name

You may download the forms listed in this order from the Washington Courts' forms website:
<http://www.courts.wa.gov/forms/>.



INSTRUCTIONS ON SURRENDERING FIREARMS



Case Name: Mark v Mark

Court Case Number

26203618 32

Pursuant to a court order, you have been ordered to surrender all firearms to the City of Spokane Police Department or Sheriff's Department (SPD/SCSO). You must IMMEDIATELY follow these instructions:

IF YOU HAVE WEAPONS: IMMEDIATELY TURN IN THE WEAPONS!

Step 1: **DO NOT BRING YOUR WEAPONS TO THE POLICE/SHERIFF DESK.** Call Crim Check at 456-2233 or if you are a Cheney resident call Cheney Crime Check at 535-9233 to make arrangements to surrender your firearms.

You must have a **copy of the court order** with you to give SPD/SCSO officer when you turn in your firearm(s). Also you must bring with you a completed list of all of your firearms that you are turning in on the **Receipt for Surrendered Weapons and Concealed Pistol License** (this form is in the packet of documents provided to you by the court.)

Step 2: You must have the law enforcement officer to whom you surrendered the firearms verify and sign the completed **Receipt for Surrendered Weapons and Concealed Pistol License**.

Step 3: **File** the completed and signed **Proof of Surrender** (form provided by the court) and attached **Receipt for Surrendered Weapons and Concealed Pistol License** with the clerk of the court from which the order was issued showing your surrender was done.

The Law Enforcement Officer serving this order may accept your weapons at the time of service.

IF YOU DO NOT HAVE WEAPONS:

Step 1: **Immediately** complete and sign the **Declaration of Non-Surrender** form.

Step 2: **File** the **Declaration of Non-Surrender** with the clerk of the court from which the order was issued immediately after signing the declaration.

If you do not surrender your weapons or file the Declaration of Non-Surrender you SHALL appear at the compliance hearing.

IF YOU DO NOT SURRENDER YOUR WEAPONS AS ORDERED BY THE COURT YOU COULD BE FOUND IN CONTEMPT OF COURT, TO HAVE VIOLATED THE NO CONTACT/PROTECTION ORDER, BE CHARGED WITH A MISDEMEANOR OR FELONY, AND PUNISHED ACCORDINGLY. RCW 9.41.040(2) AND RCW 9.41.810.

I acknowledge receipt of the Instructions on Surrendering Firearms:

Signed in Spokane, WA on _____

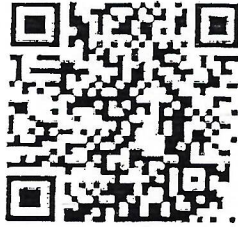
>

Signature of Restrained Person

(revised 08/22/19)

INFORMATION ON HOW TO BE IN COMPLIANCE
WITH SURRENDERING YOUR WEAPONS

For more information about how to be in compliance with the Order to Surrender Weapons, please click on or search for the following link through your web browser: <https://bit.ly/3d9uHE4> or scan the QR code with your smart phone:



HOW TO ATTEND YOUR HEARING

Docket call and hearings will occur either in-person or by video through Zoom. (If you need to attend your hearing by phone only, you will need to file a motion and obtain an order allowing appearance by phone three days prior to your hearing date. You can do this in Courtroom 202.)

In Person: Monday / Thursday – Courtroom 202
1116 W. Broadway, Spokane, WA 99260

By Video (Zoom): (1) Either: (a) log on to: zoom.us or (b) download Zoom app; (2) select "join"; (3) enter Zoom ID: **402 876 2240**

If your case is ready for a hearing, you will be given a hearing time and zoom information at docket call. Most hearings will occur in the afternoon.

WHO TO CONTACT IF YOU HAVE TECHNICAL DIFFICULTIES

If you experience technical difficulties during docket or during your hearing, please immediately contact: (509) 477-5702 ext. 0 or email: familylaw@spokanecounty.org and leave a message with your name and contact information, including phone number and email.

HOW TO REQUEST AN INTERPRETER OR ACCOMMODATIONS FOR A DISABILITY

To request an interpreter contact: (509) 477-5790

To request accommodations for a disability contact: (509) 477-5790

Superior Court of Washington, County of Spokane

Robert Mark
Petitioner

vs.

Richard Mark
Respondent/Defendant

No. **26203618 32**
Proof of Surrender
(PRSRW)

Proof of Surrender

The court ordered me to immediately surrender all firearms and other dangerous weapons (if not an *Extreme Risk Protection Order*) that I own or have in my possession or control, and any concealed pistol licenses issued to me.

On (date) _____ at _____ a.m./p.m.

I surrendered to (local law enforcement agency) _____ all:

- ☐ firearms, ☐ concealed pistol licenses, and/or
☐ other dangerous weapons (if not an *Extreme Risk Protection Order*)

Court case number (if in a different case): _____

Law enforcement agency case number: _____

I filed a copy of the **Receipt for Surrendered Firearms, Other Dangerous Weapons, and Concealed Pistol License** form with the clerk of the court.

I declare, under penalty of perjury under the laws of the State of Washington, that this statement is true and correct and that I **do not possess, control, or have custody of any other** firearms or a concealed pistol license/s. If I am not restrained by an *Extreme Risk Protection Order*, I also do not possess, control, or have custody of deadly weapons.

Voluntarily surrendering firearms or providing testimony regarding the surrender of firearms pursuant to a protection order may not be used against you in any criminal prosecution under chapters 7.105, 9.41, or 9A.56.310 RCW.

Date: _____ at _____, Washington

> _____
Signature of Restrained Person/Defendant Print name

Superior Court of Washington, County of Spokane

Robert Mark
Petitioner

9/22/85

No 26203618 32

vs.

Richard Mark
Defendant/Respondent

1/22/88
DOB

Receipt for Surrendered Firearms,
Other Dangerous Weapons, and
Concealed Pistol Licenses
(Criminal/Civil)
(RCPF)

The defendant/restrained person must file a copy of this receipt and file the *Proof of Surrender* form with the court.

Law Enforcement:

List each item surrendered individually with brand, model, serial number, color, concealed pistol license number, and issuing authority, etc. below (*Attach additional sheets if necessary*):

Number of firearms surrendered: _____

(Name of law enforcement official) _____
received the firearms, other dangerous weapons, and concealed pistol licenses listed above on
behalf of the local law enforcement agency (named) _____
(Law enforcement shall file the original receipt with the court within 24 hours after service of this
order, or within 72 hours after service of a temporary or full Extreme Risk Protection Order,
electronically whenever electronic filing is available.)

I declare, under penalty of perjury under the laws of the State of Washington, that this statement
is true and correct.

Date: _____ at (city) _____, Washington

Signature of Law Enforcement Official _____

Print Name _____

Badge No. _____

Address: _____

RCW 9A.41.800, 7.105.340
(01/2023)
WS 101

Receipt for Surrender of Weapons and
Concealed Pistol License.
Pg 1 of 1